

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
CHANCE DE ESPINA,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK
CITY POLICE DEPARTMENT, AND
MARIO GIORDANO,

Defendants.
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Index No.:

Date Purchased: 11/18/14

SUMMONS

Plaintiff designates Kings
County as the place of trial.

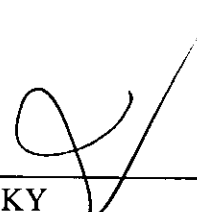
The basis of venue is:
Place of Occurrence

Plaintiff resides at:
937 Banbuzer Street, 3rd Floor
Staten Island, NY 10304
County of Richmond

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
November 18, 2014



JEFFREY ARONSKY
JEFFREY A. ARONSKY, P.C.
Attorneys for Plaintiff
CHANCE DE ESPINA
800 Second Avenue, Suite 301
New York, New York 10017
(212) 577-6600
Our File No. 02715

TO:

CITY OF NEW YORK
100 Church Street, 4th Floor
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
100 Church Street, 4th Floor
New York, NY 10007

MARIO GIORDANO
103-52 101 Street
South Ozone Park, NY 11417

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CITY OF NEW YORK, NEW YORK
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VERIFIED COMPLAINT

Defendants.

-----X
Plaintiff, CHANCE DE ESPINA, by his attorneys, JEFFREY A. ARONSKY, P.C., sets forth the following as his Verified Complaint:

1. On August 21, 2013, defendant, CITY OF NEW YORK (hereinafter CITY), was a municipal corporation duly organized and existing pursuant to the laws of the State of New York.
2. On November 15, 2013, plaintiff filed a Notice of Claim upon defendants, less than (90) days from the date of the occurrence, pursuant to General Municipal Law section 50-e.
3. More than thirty (30) days have elapsed since the service of a Notice of Claim and defendants have refused to adjust and/or make payment upon plaintiff's claim.
4. This action is commenced within one year and ninety (90) days after the happening of the event upon which this claim is based and in compliance with General Municipal Law section 50-i.
5. Although plaintiff remains willing and able to be examined pursuant to General Municipal Law section 50-h, defendant, CITY OF NEW YORK, has refused to reschedule said hearing to date.

6. On August 21, 2013, defendant, NEW YORK CITY POLICE DEPARTMENT, was an agency/department of defendant, CITY OF NEW YORK, formed under and by virtue of the laws of the State of New York.

7. On August 21, 2013, defendant, MARIO GIORDANO, was an employee of defendant, CITY OF NEW YORK.

8. On August 21, 2013, defendant, MARIO GIORDANO, was an employee of defendant, NEW YORK CITY POLICE DEPARTMENT.

9. On August 21, 2013, defendant, CITY OF NEW YORK, was the owner of a 2009 Ford motor vehicle bearing license plate number FPB5933.

10. On August 21, 2013, defendant, NEW YORK CITY POLICE DEPARTMENT, was the owner of a 2009 Ford motor vehicle bearing license plate number FPB5933.

11. On August 21, 2013, defendant, MARIO GIORDANO, was operating the 2009 Ford motor vehicle bearing license plate number FPB5933.

12. On August 21, 2013, defendant, MARIO GIORDANO, was operating the 2009 Ford motor vehicle bearing license plate number FPB5933, with the consent of defendant, CITY OF NEW YORK.

13. On August 21, 2013, defendant, MARIO GIORDANO, was operating the 2009 Ford motor vehicle bearing license plate number FPB5933, with the consent of defendant, NEW YORK CITY POLICE DEPARTMENT.

14. On August 21, 2013, defendant, MARIO GIORDANO, was operating the 2009 Ford motor vehicle bearing license plate number FPB5933, within the course and scope of his employment with defendant, CITY OF NEW YORK.

15. On December 3, 2011, defendant, MARIO GIORDANO, was operating the 2009 Ford motor vehicle bearing license plate number FPB5933, within the course and scope of his employment with defendant, NEW YORK CITY POLICE DEPARTMENT.

16. On August 21, 2013, plaintiff, CHANCE DE ESPINA, was the operator of a 2003 Nissan motor vehicle bearing New York State registration number GEW1520.

17. On August 21, 2013, the motor vehicle owned by defendant, CITY OF NEW YORK, and/or defendant, NEW YORK CITY POLICE DEPARTMENT, came into contact with the motor vehicle operated by plaintiff, CHANCE DE ESPINA, on Atlantic Avenue, at or near its intersection with Van Siclen Avenue, Brooklyn, New York.

18. The above occurrence took place solely as a result of the negligence/recklessness of the defendants.

19. Plaintiff was free from any culpable conduct.

20. This action falls within one or more of the exceptions as set forth in CPLR section 1602.

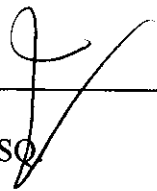
21. Plaintiff, CHANCE DE ESPINA, has complied with the Insurance Law of the State of New York and is therefore entitled to bring this action for the serious, permanent and protracted injuries he sustained in this occurrence.

22. As a result of the above occurrence, plaintiff, CHANCE DE ESPINA, was seriously injured, causing him to incur substantial medical and hospital treatment and expenses, and undergo continuous pain and suffering, all to his damage in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

WHEREFORE, plaintiff demands judgment against the defendants, and each of them, in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

Dated: New York, New York
November 18, 2014

Yours, etc.



JEFFREY ARONSKY
JEFFREY A. ARONSKY, ESQ.
Attorneys for Plaintiff
CHANCE DE ESPINA
800 Second Avenue, Suite 301
New York, New York 10017
(212) 577-6600
Our File No. 02715

ATTORNEY'S VERIFICATION

JEFFREY A. ARONSKY, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at JEFFREY A. ARONSKY, attorneys of record for Plaintiff, Chance De Espina. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

DATED: New York, New York
November 18, 2014

JEFFREY ARONSKY

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SUMMONS AND COMPLAINT

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